The examination is being carried out on the **following application documents**

Description, Pages

1-206 as originally filed

Claims, Numbers

1-15 filed in electronic form on 07-04-2025

Drawings, Sheets

1/81-81/81 as originally filed

1 Article 76(1) EPC

1.1 The present application is divided from earlier European patent applications: EP23172224.0 published as EP4249025 (parent application), and EP19825205.8 published as EP3813917 (grand-parent application), the latter stemming from PCT application published as WO2020/000033 and as such should comply with the requirements of Article 76(1) EPC. Both these earlier applications have the same description with PCT claims reproduced at the ends thereof.

The present application, however, comprises subject-matter which extends beyond the content of the earlier application as filed, contrary to said Article 76(1) EPC.

1.2 According to the applicant (letter of 07.04.2025), current claim 1 is supported on PCT claim 41 and description paragraphs [0100], [0105], [0144], [0390], [0405] and [0618]. These passages of the description shall support the following features added to the original wording of PCT claim 41: "the outer textile layer including a foam interior layer and an exterior textile sheet".

1.3 However, no direct, clear and unambiguous basis can be identified in the earlier application(s) (indicated passages or anywhere else) for the newly introduced features.

1.3.1 Paragraph [0100] immediately follows paragraph [0099] which discloses "The tube wall may comprise 1) a non-patient contacting portion *{= "outer textile layer" in the sense of current claim 1}* comprising a first outer *{= "exterior" in the sense of current claim 1}* layer and a first inner *{= "interior" in the sense of current claim 1}* layer comprising air impermeable material (...)".

Paragraph [0100] discloses (emphasis added): "In examples: (a) the first outer layer comprises textile material; (b) the second outer layer comprises textile material; (c) the first inner layer comprises thermoplastic material; (d) the second inner layer comprises thermoplastic material; (e) the non-patient contacting portion comprises a first **intermediate layer** between the first outer layer and the first inner layer; (f) the non-patient contacting portion comprises a first adhesive layer bonding the first outer layer to the first intermediate layer; (g) the non-patient contacting portion comprises a second adhesive layer bonding the first intermediate layer to the first inner layer; (h) the first **intermediate layer comprises a foam material**; (i) the first intermediate layer comprises a spacer fabric; (j) the first intermediate layer is thicker than the first outer layer; (k) the patient contacting portion comprises a second intermediate layer between the second outer layer and the second inner layer; (1) the patient contacting portion comprises a first adhesive layer bonding the second outer layer to the second intermediate layer; (m) the patient contacting portion comprises a second adhesive layer bonding the second intermediate layer to the second inner layer; (n) the second intermediate layer comprises a foam material; (o) the second intermediate layer comprises a spacer fabric; and/or (p) the second intermediate layer is thicker than the second outer layer."

Thus, according to paragraph [0100], the outer textile layer comprises a foam layer only in an at least 3-layers arrangement:
(a) the first outer layer comprises textile material;
(c) the first inner layer comprises thermoplastic material;
(e) the non-patient contacting portion comprises a first intermediate layer between the first outer layer and the first inner layer;
(h) the first intermediate layer comprises a foam material.

1.3.2 Paragraph [0105]

Paragraph [0105] discloses (emphasis added) "(...) In examples: (...) (c) the non-patient contacting portion comprises a second outer layer comprising a textile or foam material; (d) the patient contacting portion and/or the non-patient contacting portion comprises an **intermediate** layer comprising a foam material or spacer fabric material.

Thus, paragraph [0105] does not provide any clear indication as to a 2-layer arrangement (with an outer layer layer of foam).

1.3.3 Paragraph [0144] is not concerned with the layer structure of the gas delivery tube.

1.3.4 Paragraph [0390] refers to Figures 4F, 4F-1 and 4F-2, wherein the latter concerns the layer structure of the "outer textile layer" in the sense of current claim 1.

Said paragraph [0390] discloses (emphasis added): "Referring to Fig. 4F a cross section of tube 3350 is depicted. In some forms, the inner layer 3352 and outer layer 3354 may be formed of multiple layers of textile material and/or membrane material. By varying the thickness and composition of the layers of tube 3350, different characteristics may be achieved. As shown in Fig. 4F, and in particular Fig. 4F-1 inner layer 3352 comprises a textile sheet 3360 along with textile membrane 3362. Textile sheet 3360 may be formed of felt, spacer fabric, foam, woven, knit, or non-woven material or other network of fibers.
As shown, textile sheet 3360 is a felt-type textile. In this manner, exterior surface 3374 of inner layer 3352 may have a soft feel against the face of a patient. Outer layer 3354 is composed of multiple sheets of textile. Outer layer 3354 includes tube sheet 3364 and outer covering 3366. In some forms, both sides of tube sheet 3364 may be covered with a textile membrane. As shown in Fig. 4F-2, tube sheet 3364 includes textile membrane 3368 exposed to the chamber of tube 3350 and textile membrane 3370 along an opposite surface of tube sheet 3364. Textile membrane 3368 may assist in providing a seal between inner layer 3352 and outer layer 3354 as well as forming an air tight tube.
Textile membrane 3370 may assist in joining tube sheet 3364 to outer covering 3366. In other forms, tube sheet 3364 may directly bond or join to outer covering 3366. In other forms, outer layer 3354 includes a shape holding material or material that is able to be thermoformed such as **a foam layer located between tube sheet 3364 and outer covering 3366.** In other forms, tube sheet 3364 may be able to be thermoformed. As discussed in detail later in this detailed description, the shape holding material may be utilized to provide a predetermined shape for tube 3350."

Thus, paragraph [0390] discloses a foam layer in an at least 3-layer arrangement:
a) textile membrane (3368) exposed to the chamber of tube (3350);
c) a foam layer located between tube sheet (3364) and outer covering (3366)
c) textile membrane (3370) along an opposite surface of tube sheet (3364).

1.3.5 Paragraph [0405] also refers to Fig. 4F and discloses (emphasis added): "In some forms, an additional layer may be located between outer covering 3366 and tube sheet 3364. In some forms the additional material may be a foam or other thermoset material. In other forms, tube sheet 3364 or outer covering 3366 or both may be formed of a foam or thermosetting material."

Thus, said paragraph [0405] still describes an at least 3-layer arrangement.

1.3.6 Paragraph [0618] refers to Fig. 16 disclosing an arrangement with 5 layers, wherein a first outer layer (9371) comprises a textile material or a foam material, and a first intermediate layer (9373) comprises a foam or spacer fabric material.

1.4 Therefore, a 2-layer arrangement of the outer textile layer, with a foam interior layer and an exterior textile sheet is not directly and unambiguously derivable from the earlier application(s) as originally filed, in contravention with the requirements of Article 76(1) EPC.

In this regard, the applicant's attention is also drawn to the Case Law Book of the Boards of Appeal (2022), section II.E.1.6.1 a), i.e. in the absence of a pointer to a particular combination, the combined selection of features does not, for the skilled person, emerge clearly and unambiguously from the content of the application as filed.

1.5 Basis for the dependent claims 2-15 indicated by the applicant in his letter of 07.04.2025 appears to be sufficient, however claims 2-6 and 8-15 contravene the requirements of Article 76(1) EPC by virtue of their dependency on claim 1.

1.6 Claim 7 appears to define the features missing in current claim vis a vis the disclosure in the earlier application(s), see item 1.3.4 above.

1.7 The applicant is asked to amend claim 1 respectively and/or provide convincing basis in the earlier application(s) for the features in claim 1 in combination

In order to assess the allowability of the amendments, the applicant is invited to indicate:
- where a literal (i.e. word by word) basis can be found in the application as originally filed, in particular which one of the claims as originally filed or which paragraph(s) of the description serve(s) as a literal basis;
- in case no literal basis is to be found, which claim(s) or paragraph(s) serve(s) as basis and why a skilled person would derive the subject-matter of the claims directly and unambiguously from the relevant claims, description or drawing(s) as originally filed;
- when the applicant indicates that the basis is to be found in drawings, the applicant is asked to provide arguments related to why the skilled person would be able to clearly and unmistakably recognise from the drawings, that the added

feature is the deliberate result of the technical considerations directed to the solution of the technical problem involved (Guidelines EPC H-V, 6);
- in case features are combined from several embodiments, why such a combination is allowable; and
- in case a feature has been deleted compared to the embodiment, why this modification does not represent an unallowable generalisation or an unallowable intermediate generalisation (Guidelines EPC H-V, 3.1).

2 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 WO 2011/022779 A1 (RESMED LTD [AU]; BARLOW ADAM [AU] ET AL.) 3 March 2011 (2011-03-03)

D2 WO 2012/167327 A1 (RESMED LTD [AU]; OVZINSKY GRANT MILTON [AU] ET AL.) 13 December 2012 (2012-12-13)

D3 WO 2011/110962 A1 (KONINKL PHILIPS ELECTRONICS NV [NL]; SMITH DAVID W [US]) 15 September 2011 (2011-09-15)

D4 WO 2008/011682 A1 (RESMED LTD [AU]; KWOK PHILIP RODNEY [AU] ET AL.) 31 January 2008 (2008-01-31)

D5 WO 2017/185140 A1 (RESMED LTD [AU]) 2 November 2017 (2017-11-02)

3 Notwithstanding the above-mentioned contravention of the requirements of Article 76(1) EPC, **the subject-matter of claim 1 appears to meet the EPC requirements with regard to novelty** (Articles 52(1) and 54(1,2) EPC).

3.1 Documents D1-D5 were identified as the most relevant prior art, wherein documents D1 seem to share the most structural and functional features with the subject matter of claim 1.

3.2 Documents D1 and D2 appear not to disclose the outer textile layer being more rigid than the inner textile layer, these features also not being part of the common general knowledge and not rendered obvious by other available prior (D3-D5) art **thus meeting also EPC requirements with regard to the inventive step** (Article 56 EPC).

3.3 In this respect, see also IPER issued with respect to the application PCT/AU2019/050655 (amended claim 41 equal to the current claim 1).

4 **Nevertheless, the applicant is invited to file an amended set of claims overcoming the objections pursuant to Article 76(1) EPC and also indicate in his reply how the subject-matter of the new claim(s) differs (in terms of technical features) from the state of the art (D1-D5) and the significance thereof (technical effect provided). The applicant is invited to apply the so-called "problem-solution approach" when arguing inventive step (see Guidelines G-VII, 5).**

5 **Any new claim 1 will have to be worded in the two-part form incorporating in its preamble the features disclosed in the closest prior art D1/D2 (Rule 43(1)(b)EPC).**

6 **Reference signs should be used throughout the claims (Rule 43(7) EPC).**

7 **The applicant should adapt the description to the claims on file.**

8 **The closest prior art documents should be indicated and discussed in the description (Rule 42(1)(b) EPC).**

9 The applicant is asked to take into account all of the objections set out above.